

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #16	CCRB Case #: 201404925	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 05/19/2014 4:03 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/19/2015	Precinct: 79		
Date/Time CV Reported Mon, 05/19/2014 11:16 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 05/19/2014 11:16 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Beitler Pierre	25060	954237	PSA 3
2. POM Jonathan Trossi	7606	955597	PSA 3
3. POM David Yee	01004	953589	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A . POM David Yee	Abuse: PO David Yee frisked § 87(2)(b)	A . Unsubstantiated
B . POM David Yee	Abuse: PO David Yee searched § 87(2)(b)	B . Unsubstantiated
C . POM Jonathan Trossi	Abuse: PO Jonathan Trossi stopped § 87(2)(b)	C . Substantiated
D . POM Jonathan Trossi	Off. Language: PO Jonathan Trossi made remarks to § 87(2)(b) based upon race.	D . Unsubstantiated
E . POM Beitler Pierre	Abuse: PO Beitler Pierre threatened § 87(2)(b) with the use of force.	E . Exonerated
F . POM Beitler Pierre	Force: PO Beitler Pierre used physical force against § 87(2)(b)	F . Unsubstantiated
G . POM Jonathan Trossi	Abuse: PO Jonathan Trossi detained § 87(2)(b)	G . Substantiated

Case Summary

On May 19, 2014, § 87(2)(b) filed this complaint on behalf of her son, § 87(2)(b). § 87(2)(b) did not witness this incident. At 4:03 p.m., PO David Yee of PSA3 stopped § 87(2)(b) at § 87(2)(b) in Brooklyn. § 87(2)(b) § 87(2)(b)'s friend, was present during the stop, and alleged that PO Yee frisked and searched § 87(2)(b) (**Allegations A and B**). PO Yee then issued § 87(2)(b) a summons for § 87(2)(b). § 87(2)(b) removed the bicycle, which he said belonged to his cousin, from the scene, and brought it inside of § 87(2)(b). § 87(2)(b) then returned to the location. PO Jonathan Trossi, also of PSA 3, asked to speak to § 87(2)(b). PO Trossi reported that he told § 87(2)(b) that the officers needed the bike back, and requested his identification. § 87(2)(b) responded, "Nah, that's my cousin's bike. Suck my dick; I'll spit in your face" (**Allegation C**). PO Trossi subsequently placed § 87(2)(b) under arrest for § 87(2)(b). § 87(2)(b) reported that PO Trossi grabbed his right arm, turned him around, and then grabbed his left arm to cuff him. § 87(2)(b) had previously dislocated his right arm, and it regularly pops in and out of its socket, so it felt "shaken" when PO Trossi cuffed him. While placing § 87(2)(b) under arrest, PO Trossi allegedly told him, "Be quiet, nigger," and called him "nigger" multiple times thereafter (**Allegation D**). A crowd formed to watch § 87(2)(b)'s arrest. His grandmother, § 87(2)(b) was among the members of this crowd. PO Beitler Pierre, also of PSA 3, responded to the scene and assisted in crowd control. PO Pierre allegedly told § 87(2)(b) to get back multiple times, and while doing so, took out his baton and swung it in the air (**Allegation E**). § 87(2)(b) also alleged that PO Pierre pushed her § 87(2)(b) granddaughter, § 87(2)(b) to move her out of the way (**Allegation F**). § 87(2)(b) was taken to the PSA 3 stationhouse, from where he was ultimately released to § 87(2)(b) with a juvenile report (**Allegation G**).

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation § 87(2)(b).
- As of March 2015, neither § 87(2)(b) nor § 87(2)(b) had filed a notice of claim in regards to this incident according to the New York City Comptroller's Office (encl. 11E).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]
[redacted]

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b) s first with the CCRB (encl. 1V).
- This complaint is § 87(2)(b) s first with the CCRB. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- This complaint is the first CCRB complaint against PO Yee and PO Trossi. PO Yee has been a member of the NYPD for two years, and PO Trossi has been for one year (encl. 1S-T).

- PO Pierre, who has been a member of the NYPD for two years, has two CCRB allegations against him involving two cases. Both of these allegations were physical force allegations, however neither prior allegation against PO Pierre was substantiated (encl. 1U).

Civilian Statements

Victims

§ 87(2)(b) (encl. 3A-F)

- On July 21, 2014, § 87(2)(b) was interviewed at the CCRB. His mother, § 87(2)(b) was also present for the interview.
- § 87(2)(b)
- § 87(2)(b) was with § 87(2)(b) when PO Yee and another officer, identified via investigation as PO Trossi, stopped § 87(2)(b) and asked for his identification for riding a bicycle on the sidewalk. During his CCRB interview, § 87(2)(b) denied that § 87(2)(b) had been riding the bicycle on the sidewalk, and said that § 87(2)(b) had rolled the bicycle alongside him as he walked. § 87(2)(b) observed PO Yee frisk the front and back of § 87(2)(b)'s body. PO Yee then instructed § 87(2)(b) to turn his pockets inside out, and § 87(2)(b) complied. Nothing fell out of § 87(2)(b)'s pockets, and PO Yee did not reach inside them. PO Yee then issued § 87(2)(b) a summons.
- While the officers were speaking to § 87(2)(b) § 87(2)(b) took the bicycle, which belonged to his cousin, and dropped it off at his cousin's house at § 87(2)(b). He estimated that he was occupied with that task for about five minutes before rejoining § 87(2)(b) and the officers.
- As § 87(2)(b) walked back toward § 87(2)(b) PO Trossi told him to come over, but § 87(2)(b) did not comply. PO Trossi then grabbed § 87(2)(b)'s right arm, turned him around, and grabbed his left arm to handcuff him. When PO Trossi pulled on § 87(2)(b)'s arms, his right arm felt "shaken" due to a prior dislocation.
- § 87(2)(b) acknowledged moving his arms while PO Trossi attempted to cuff him, and told PO Trossi to get off of him. PO Trossi told him, "Be quiet, nigger," and called him "nigger" multiple times thereafter.
- PO Trossi then placed § 87(2)(b)'s back against a gate. The incident had prompted a crowd to gather, including a neighbor named § 87(2)(b) who § 87(2)(b) alleged recorded the incident. § 87(2)(b)'s cousin, § 87(2)(b) notified § 87(2)(b)'s grandmother, § 87(2)(b) of what was going on, and she came outside from her house at § 87(2)(b).
- § 87(2)(b) observed § 87(2)(b) attempt to get closer to him, along with other members of the crowd. PO Pierre then told them to get back. PO Pierre then removed his baton and swung it in the air while telling the crowd to back up. § 87(2)(b) denied that PO Pierre struck anyone with the baton, and the crowd backed up in response to the action.
- § 87(2)(b) did not make any allegations regarding § 87(2)(b)

§ 87(2)(b) (encl. 3G)

- On December 23, 2014, § 87(2)(b) provided an unverified telephone statement.
- When § 87(2)(b) found out that the police had detained § 87(2)(b) she came outside and tried to get more information. She told the officers to be careful because

- § 87(2)(b)'s arm was dislocated. She heard an officer, identified via investigation as PO Trossi, tell § 87(2)(b) to shut up, and he also used "foul language," but she could not recall specifically what he had said. § 87(2)(b) did not recall whether any officer said, "nigger."
- While § 87(2)(b) tried to get closer to § 87(2)(b) an officer identified via investigation as PO Pierre told her repeatedly to get back, and took out his nightstick. He held it in the air, but did not strike her with it. § 87(2)(b) believed that PO Pierre did that in order to prevent her from coming closer. After PO Pierre told her to back up, § 87(2)(b) did not try to get closer to § 87(2)(b) again.
 - § 87(2)(b)'s § 87(2)(b) granddaughter § 87(2)(b) stood next to § 87(2)(b) as they both tried to get closer to § 87(2)(b). PO Pierre pushed § 87(2)(b) § 87(2)(b) characterized this push as a gentle push meant to move § 87(2)(b) aside and prevent her from getting closer to where the officers were effecting § 87(2)(b)'s arrest.

Attempts to Contact Civilians

Victims

- On July 21, 2014, upon § 87(2)(b)'s CCRB interview, neither § 87(2)(b) nor § 87(2)(b) could provide any contact information for § 87(2)(b) a victim of this complaint. On October 22, 2014, § 87(2)(b) was contacted by phone, and asked whether she was able to obtain any contact information for § 87(2)(b). § 87(2)(b) said that neither she nor § 87(2)(b) had obtained any such information, but agreed to provide § 87(2)(b) with the undersigned investigator's business card should she see him.
- § 87(2)(b)'s birth date was obtained from the PSA 3 summons log from the incident date. Using this information, a Lexis Nexis search was conducted and yielded an address and phone number for § 87(2)(b). On December 30, 2014, § 87(2)(b) was contacted at this phone number, but a voicemail could not be left because the call could not be completed as dialed. On that date, § 87(2)(b) was mailed a please call letter. On January 6, 2015, § 87(2)(b) contacted the undersigned investigator and left a voicemail providing a functional phone number on which he could be called back. During January 2015, § 87(2)(b) and the undersigned investigator left voicemails for each other. On January 29, 2015, when § 87(2)(b) returned the undersigned investigator's call, the investigative process was explained to him, and he was asked to provide a statement regarding this investigation. However, § 87(2)(b) declined to participate in the investigation because he was not personally interested in pursuing this complaint.
- On December 23, 2014, § 87(2)(b) § 87(2)(b)'s grandmother, provided a telephone statement, in which she made an allegation involving her § 87(2)(b) granddaughter, § 87(2)(b) as a victim of a physical force allegation. On March 17, 2015, § 87(2)(b) was contacted by phone, at which point she agreed that upon being mailed a verification form, she would execute such as instructed by the investigator, and subsequently return such by mail to the investigator. She granted permission for the investigator to speak to § 87(2)(b) who § 87(2)(b) said would be home from school at approximately 5:30 p.m. that day. § 87(2)(b) told the investigator to call her number, and she would put § 87(2)(b) on the phone to speak to the investigator. At 5:36 p.m., the investigator called § 87(2)(b)'s phone number, and left a voicemail requesting a call back from § 87(2)(b) or § 87(2)(b). On April 1, 2015, the investigator again called § 87(2)(b)'s phone number shortly after 5:30 p.m., and requested a call back

from § 87(2)(b) or § 87(2)(b) § 87(2)(b) never returned the executed verification form or the undersigned investigator's calls. The investigator was also never able to speak with § 87(2)(b)

Witnesses

- On July 21, 2014, § 87(2)(b) provided a phone number for § 87(2)(b) a neighbor who said she had video footage of the incident. On August 12, 2014, § 87(2)(b) was contacted by telephone, and she confirmed that she had video footage of the incident, which she had given to § 87(2)(b) § 87(2)(b) as asked whether she could e-mail said video footage to the undersigned investigator, but she said that she did not know how to do so. § 87(2)(b) did not have time to discuss the incident further because she was at work. On October 22, 2014, § 87(2)(b) was contacted by telephone and left a voicemail requesting a call back. On January 16, 2015, § 87(2)(b) was contacted by phone, at which point she said that it would be difficult to come to the CCRB to be interviewed due to her school and work schedules. She reiterated that she did not know how to send the investigator her video footage of the incident, but said that § 87(2)(b) knew how to do it, and she would be with § 87(2)(b) later in the day, at which point she would call the undersigned investigator. After § 87(2)(b) did not call the undersigned investigator, she was again contacted by phone on March 6, 2015, at which point she requested that the undersigned investigator contact § 87(2)(b) and tell her to call § 87(2)(b) and instruct her regarding sending the undersigned investigator the video footage. The undersigned investigator then called § 87(2)(b) and received a message that her number was temporarily out of service. On March 13, 2015, § 87(2)(b) was contacted by phone again, and told the investigator that she was getting off work, but would be going to § 87(2)(b)'s house, where she would give § 87(2)(b) the investigator's number to call and discuss the video footage. Because neither § 87(2)(b) nor § 87(2)(b) contacted the undersigned investigator again regarding the video footage, the investigator was unable to view and analyze any such footage.
- § 87(2)(b) also provided a phone number for § 87(2)(b) her cousin who she said witnessed the incident. During the period starting August 12, 2014 and concluding March 13, 2015, § 87(2)(b) was contacted five times and left five voicemails requesting a call back. To date, she has not called the undersigned investigator in response to these voicemails.
- § 87(2)(b) also provided a phone number for § 87(2)(b)'s father, § 87(2)(b) who witnessed part of the incident. On August 12, 2014, § 87(2)(b) was contacted at this phone number, and left a voicemail requesting a call back. On October 22, 2014, § 87(2)(b) was contacted at this number, and the individual that answered informed the undersigned investigator that § 87(2)(b) could not be reached at that number.

NYPD Statements

Subject Officer: PO JONATHAN TROSSI (encl. 5A-G)

- On March 18, 2015, PO Trossi was interviewed at the CCRB,
- Although PO Trossi was working a solo scooter post, he was working alongside PO Yee and PO Pierre when they observed § 87(2)(b) riding a bicycle on the sidewalk with § 87(2)(b) walking beside him. The officers told § 87(2)(b) to get off the bicycle, and

he complied. § 87(2)(b) took the bicycle and started running away with it into § 87(2)(b). § 87(2)(b) did not say anything to the officers when he took the bicycle. PO Trossi explained that neither he nor PO Yee went after § 87(2)(b) so that neither would be alone while dealing with § 87(2)(b). § 87(2)(b) laughed about § 87(2)(b)'s taking the bicycle. PO Trossi told him if that if the officers' warrant check indicated that there was an active warrant for § 87(2)(b) the officers would need the bicycle to be vouchered as arrest evidence.

- The officers determined that there were no active warrants for § 87(2)(b) and PO Yee issued him summons number § 87(2)(b) for § 87(2)(b) (encl. 4E-F). No officer frisked or searched § 87(2)(b).
- About two minutes later, § 87(2)(b) returned to § 87(2)(b) and the officers without the bicycle. PO Trossi told him that the officers needed the bicycle back, and he replied, "Nah, that's my cousin's bike. Suck my dick; I'll spit in your face." PO Trossi also asked for § 87(2)(b)'s name when telling him that the officers needed the bicycle. PO Trossi then placed § 87(2)(b) under arrest because he would not provide his name nor the bicycle. PO Trossi did not tell § 87(2)(b) "Be quiet, nigger," or use any racial slur toward him.
- PO Trossi did not recall any officer taking out his baton or PO Pierre swinging his baton in the air. He stated that he did not observe PO Pierre push any civilian during the incident.
- At the stationhouse, PO Trossi consulted with the Juvenile Desk and decided to release § 87(2)(b) with a juvenile report. § 87(2)(b) was released to his mother, § 87(2)(b).

Additional Officers

- On March 18, 2015, PO Yee was interviewed at the CCRB (encl. 4A-H). He denied frisking or searching § 87(2)(b). PO Yee did not see § 87(2)(b) until PO Trossi already had him handcuffed. PO Yee did not recall PO Trossi telling § 87(2)(b) "Be quiet, nigger," or hearing any other officer use the word "nigger." PO Yee did not recall PO Pierre being present on the scene. He did not observe any officer taking out his baton, swinging his baton around, or pushing any civilian.
- On April 2, 2015, PO Pierre was interviewed at the CCRB (encl. 6A-F). PO Pierre arrived on the scene when § 87(2)(b) was already handcuffed. He did not recall whether PO Yee was present on the scene. He did not see any civilian be frisked, and did not see any civilian searched besides for § 87(2)(b) incident to his arrest. PO Trossi did not tell § 87(2)(b) "Be quiet, nigger," and no officer used the word "nigger." PO Pierre conducted crowd control, but did not recall any specific interaction he had with any particular civilian. He did not recall whether he took his baton out. He stated that he did not push any civilian.

Findings and Recommendations

Explanation of Subject Officer Identification

- All three officers admitted to interacting with § 87(2)(b) and § 87(2)(b) during this incident.
- PO Yee's pedigree matched § 87(2)(b)'s description of the officer that frisked and searched § 87(2)(b). PO Yee also was the officer who issued § 87(2)(b) a summons. § 87(2)(g).

- PO Trossi was § 87(2)(b)'s arresting officer. His pedigree also matched § 87(2)(b)'s description of the officer that allegedly used a racial slur against him. § 87(2)(g)
- PO Pierre's pedigree matched § 87(2)(b) and § 87(2)(b)'s description of the officer that swung his nightstick in front of § 87(2)(b) additionally alleged that this officer pushed § 87(2)(b) PO Pierre also acknowledged conducting crowd control on the scene. § 87(2)(b)

Allegations not pleaded

- § 87(2)(g)
- **Force:** Although § 87(2)(b) alleged in an unverified phone statement that PO Trossi repeatedly pushed § 87(2)(b) against the fence, § 87(2)(b) reported only that PO Trossi grabbed his arms and pulled them back in order to handcuff him. § 87(2)(g)

Allegation A—Abuse of Authority: PO David Yee frisked § 87(2)(b)

Allegation B—Abuse of Authority: PO David Yee searched § 87(2)(b)

Allegation D—Offensive Language: PO Jonathan Trossi made remarks to § 87(2)(b) based upon race.

Allegation E—Abuse of Authority: PO Beitler Pierre threatened § 87(2)(b) with the use of force.

Allegation F—Force: PO Beitler Pierre used physical force against § 87(2)(b)

§ 87(2)(b) alleged that when PO Yee stopped § 87(2)(b) he frisked and searched him before issuing him a summons. § 87(2)(b) declined to provide a statement for or participate in this investigation. PO Yee and PO Trossi denied that PO Yee frisked or searched § 87(2)(b) § 87(2)(b) and PO Pierre, who were interviewed for this investigation, both arrived on the scene subsequent to § 87(2)(b) being issued a summons, § 87(2)(g)

§ 87(2)(b) acknowledged that he resisted arrest, and that while he was doing so, PO Trossi allegedly told him, “Be quiet, nigger,” and called him “nigger” repeatedly thereafter. Although § 87(2)(b) believed that the officers used “foul language” while effecting § 87(2)(b)'s arrest, she did not recall whether any officer used the word “nigger.” PO Yee, PO Trossi and PO Pierre all denied that PO Trossi told § 87(2)(b) “Be quiet, nigger,” or used the word “nigger” at any point.

§ 87(2)(b) reported that she was on the scene with her granddaughter, § 87(2)(b) and they tried to get closer to § 87(2)(b) to determine what was happening to him and why he was being arrested. In response, PO Pierre repeatedly told § 87(2)(b) to get back. § 87(2)(b) stated that the officer then took out his nightstick and held it in the air, but did not strike her or anyone else. § 87(2)(b) also alleged that PO Pierre pushed § 87(2)(b) to prevent her from getting closer to § 87(2)(b) Although § 87(2)(b) gave the investigator permission to speak to § 87(2)(b) and the investigator called § 87(2)(b)'s number according to the information § 87(2)(b) provided regarding when § 87(2)(b) would be available, § 87(2)(b) was never

reached to provide a statement. § 87(2)(b) corroborated that while he was under arrest, he observed PO Pierre tell § 87(2)(b) and the other members of the crowd multiple times to get back. He also took out his baton, and swung it in the air, but did not strike anyone. § 87(2)(b) said that this baton was black, and did not extend when pointed toward the ground. § 87(2)(b) did not make any allegation involving § 87(2)(b)

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegations A, B, D, E and F** be closed as **unsubstantiated**.

Allegation C—Abuse of Authority: PO Jonathan Trossi stopped § 87(2)(b)

It is undisputed that § 87(2)(b) removed a bicycle from the incident location, dropped it off at another location, and thereafter returned to the officers' location. PO Trossi testified that when § 87(2)(b) took the bicycle, neither he nor PO Yee went after § 87(2)(b) so that neither would be alone while dealing with § 87(2)(b). PO Trossi informed § 87(2)(b) that if the officers' warrant check yielded any warrants for § 87(2)(b) they would need the bicycle to be vouchered as arrest evidence. When § 87(2)(b) returned, PO Trossi said that he told him that the officers needed the bicycle back and also asked for his name, and § 87(2)(b) replied, "Nah, that's my cousin's bike. Suck my dick; I'll spit in your face." PO Trossi asked § 87(2)(b) for his name twice, and he refused to answer. PO Trossi testified that he placed § 87(2)(b) under arrest for Obstruction of Governmental Administration (P.L. §195.05) because he would not provide his name or return the bicycle to the officers. When PO Trossi began to effect § 87(2)(b)'s arrest, PO Yee was already issuing § 87(2)(b) a summons because the warrant check had already been computed and was negative.

A police officer needs only an objective credible reason to approach an individual and request information. In order to obtain explanation information via a common-law inquiry, which may include questions of a more accusatory tone or nature, an officer must have a founded suspicion that criminality is afoot. An officer may stop an individual when he has reasonable suspicion that said individual has committed, is committing or is about to commit a crime. *People v. DeBour*, 40

N.Y.2d 210 (1976) (encl. 1A-K). A common-law inquiry only allows for a brief detention for the purpose of obtaining explanatory information. Reasonable suspicion of the defendant's commission of a crime is necessary to forcibly detain said defendant for investigation. *People v. Lee*, 96 A.D.3d 1522 (4th Dept. 2012) (encl. 1L-Q).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegations C and G** be closed as **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date